

## QUEENSLAND INDUSTRIAL RELATIONS COMMISSION

Matter No. WC/2024/227 | Cory Lea Shepherd (Appellant) v Workers' Compensation Regulator (Respondent)

### APPELLANT'S SCHEDULE OF MEDICAL DOCUMENTS RELIED UPON

Served on the Respondent with the outlines of evidence under direction 2 of the Further Directions Order (3) dated 19 August 2026. Not filed in the Industrial Registry.

No report has been prepared for the purposes of this proceeding. The Appellant relies on the treating records and reports below, each of which is already held by the Respondent at the item of its amended List of Documents dated 14 August 2026 stated, except item 6, a copy of which is served with this schedule. Against each document is stated what it is relied upon for and what it is not relied upon for, so that its use at the hearing is clear. The pages relied upon follow at Tabs 1 to 7; pages not relied upon are omitted, and each tab sheet identifies them. Tab 8 adds the Respondent's own responses of 18 February 2026 concerning these documents.

| No. | Document, and where the Respondent holds it                                                                                                                                | Relied upon for                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            | Not relied upon for                                                                                                                                                                                                                                                                    |
|-----|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 1   | General-practice records, Our Medical Ashmore, 1 January 2023 to 1 July 2024 (Respondent's item 11; obtained by the Respondent under the Form 29 signed 4 July 2025).      | Prior health: the entry of 16 November 2023 (Dr Nanayakkara) recording poor sleep with shift work, that the Appellant could not do shifts without a good sleep, no psychological illness such as depression or psychosis, and mood good, with melatonin and temazepam prescribed; the 2022 history and the referral renewed 16 May 2024. First presentation after onset: 28 June 2024 (Dr Slawinski) recording "stress at work" and "upset by people not following rules", reason for visit anxiety; and 1 July 2024 (Dr Hawes) recording "work stress", that "they withhold pay at times, no overtime- not processed, manipulate his roster- so he works lates then earlies", and "causing anxiety". These entries are relied upon as the contemporaneous record of what was reported before any claim decision, dismissal or proceeding. | Entries unrelated to the injury. Private medical entries unrelated to the injury are redacted on the extracted pages in the served copy and marked as such.                                                                                                                            |
| 2   | Work capacity certificates of Dr Peter Hawes dated 1 July, 11 August and 8 September 2024, and of Dr Ki Pang dated 7 August 2024 (Respondent's items 7 and 8).             | The stated date of injury, 18 June 2024; that the Appellant was first seen for this injury on 1 July 2024; continuous certification of no functional capacity from 1 July to 6 October 2024; and the referral to a psychiatrist recorded on 8 September 2024.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              | The recorded mechanism as a finding of fact. The events are proved by the notice to admit facts served 28 August 2026, not by the certificates. Nothing as to medication; the medication box is unticked on each.                                                                      |
| 3   | Email from the practice of Dr Ravikumar Bangalore Krishnaiah to the Appellant, 24 October 2024 at 11:45 am, "Medications" (Respondent's item 9; Appellant's List item 22). | That on the morning of 24 October 2024, at the first consultation, the treating psychiatrist told the Appellant, and confirmed in writing at 11:45 am that day, that he was "suffering from psychological injury of Major Depressive Disorder with anxiety state"; that fluoxetine was increased to two capsules "from today" and Seroquel 25 mg commenced at night, "to restore basic needs- sleep, eating and routine". Read with item 2, it records the progression of the injury certified as "anxiety, stress" on 1 July 2024 to a depressive disorder by 24 October 2024. The Appellant's email to QSuper at 5:12 pm that day ("I have finally been able to see a psychiatrist today") is reproduced with it.                                                                                                                        | The reference to preoccupation with the claim as a cause of the injury. The injury relied upon is that of 18 June 2024; the email records its state four months later.                                                                                                                 |
| 4   | Report of Dr Krishnaiah, Mind and Memory Service, 13 February 2025, prepared for QSuper (Respondent's item 10).                                                            | Diagnosis: Major Depressive Disorder with anxious distress (DSM-5 296.23). Severity and functional effect, and treatment (fluoxetine increased to three capsules daily; quetiapine 25 mg at night). The treating clinician's account of origin: "workplace stress stemming from issues with management and rostering"; that the issues "began approximately one year ago when a new manager was appointed"; pay "withheld or delayed for up to five months at a time, leading to significant financial stress"; and that "premature exposure to the workplace is more likely result in significant deterioration".                                                                                                                                                                                                                         | Attribution among the individual events at paragraphs 2 to 7 of the Appellant's outline of evidence; any matter after 24 October 2024 as a cause of the injury. The report was prepared for QSuper and is tendered as a treating record, not as a report prepared for this proceeding. |
| 5   | Clinical records of Dr Krishnaiah from 24 October 2024 (offered by the practice on 5 September 2026 and requested; not yet received).                                      | What was reported at the first consultation and when; diagnosis and prescribing over time. To be served on receipt. If any direction is required for reliance on them, the Appellant will apply for it.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    | Nothing until received.                                                                                                                                                                                                                                                                |
| 6   | Employee Capability Checklist completed by Dr Day Hong Ma, 3 July 2026 (copy served herewith).                                                                             | Current capacity and restrictions, and the continuing effect of the injury, including "symptom exacerbation on exposure to the identified workplace stressors".                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            | Causation. It post-dates 1 July 2024 and is relied upon for effect and capacity only.                                                                                                                                                                                                  |
| 7   | Review Decision 69983, reasons dated 24 October 2024, pages 17 and 26 to 27 (Respondent's item 4; contents admitted 18 February 2026).                                     | That the Respondent's own review recorded Dr Hawes's statement to WorkCover of 2 September 2024 that work events were the sole cause, found "a personal injury of a psychological nature", found employment "was a significant contributing factor" as to factors 2, 3 and 4, and found the March 2024 rostering to be unreasonable management action.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     | As a binding determination. The hearing is de novo; the finding is relied upon as an admitted document.                                                                                                                                                                                |

The Appellant reserves the position as to any further report. If one is to be relied upon, directions will be sought before it is served.

Dated: September 2026

Cory Lea Shepherd, Appellant, self-represented